

Grand Board Decisions

04/03/2026

Case No.	Date	Nickname	Keywords	Relevant Provision	Case type	Summary	Appeal to GC
1. R 378/2020-G	27/02/2026	Burgos alimenta (fig.) 	EU Collective Mark	Article 76 EUTMR, Article 74 EUTMR	Absolute Grounds	The case concerns the EU collective mark application 'BURGOS ALIMENTA' filed by the Diputación Provincial de Burgos. Under art. 74 to 76 EUTMR, an EU collective mark must be capable of distinguishing the goods or services of the members of the proprietor association from those of other undertakings. The Grand Board held that, in practice, this requires an ownership and governance framework that is genuinely associative in nature, including meaningful member participation in the adoption and operation of the regulations governing use of the collective mark. Therefore, the Diputación Provincial de Burgos, acting in its capacity as a public authority and not as an association within the meaning of Article 74(1) EUTMR, cannot be the proprietor of an EU collective mark. The decision also underlines that collective marks and certification marks serve different essential functions and must not be conflated. Where a sign is likely to be perceived as an official guarantee or quality seal, particularly one centred on geographical origin and administered unilaterally by a public body, the public may be misled as to the character of the sign, triggering refusal under Article 76(2) EUTMR.	
2. R 2248/2019	19/12/25	GEORGE ORWELL	Descriptive element Distinctive character	EUTMR Article 7(1)(b) Article 7(1)(c) Article 165(3)(b)	Absolute Grounds	Under Article 7(1)(c) EUTMR, a sign is unregistrable where it may be used, in normal trade, to designate a characteristic of the goods or services. The list of characteristics in Article 7(1)(c) is non-exhaustive and includes 'other characteristics', which encompasses the subject matter or content of goods and services that convey information (such as recordings, publications, and educational/entertainment services). It is sufficient that the ground for refusal exists in only part of the EU; assessment by reference to the English-speaking public, in particular Ireland and Malta, is therefore sufficient. GEORGE ORWELL is immediately and unequivocally understood by the relevant public as the name of the well-known British	YES

							author. Given the nature of the goods and services at issue in Classes 9, 16 and 41, that name will be perceived as indicating their subject matter, namely that the goods and services concern, include, or relate to George Orwell, his works, and the ideas and themes deriving from them. The sign has a sufficiently direct and specific relationship with the goods and services such that it enables the relevant public to perceive, without further thought, a description of their content. Because a sign that is descriptive under Article 7(1)(c) EUTMR is, by the same token, incapable of indicating commercial origin, it is also devoid of distinctive character under Article 7(1)(b) EUTMR. Independently of descriptiveness, the relevant public will perceive the sign merely as a reference to the famous author and not as a badge of trade origin for the goods and services concerned. Articles 7(1)(d) to (g) EUTMR do not apply. The sign has not been shown to have become customary in the language or in established trade practices for the goods and services concerned (Article 7(1)(d)). There is no basis to consider it contrary to public policy or accepted principles of morality (Article 7(1)(f)). Nor does the sign entail a sufficiently serious risk of deceiving the public as to the nature, quality or geographical origin of the goods or services, and the identity of the applicant is irrelevant to that assessment (Article 7(1)(g)).	
R 2307/2020	25/11/24	MARICON PERDIDO	Contrary to public policy or principles of morality	EUTMR Article 7(1)(f) Article 165(3)(b)	Absolute Grounds	The Grand Board found that the expression 'MARICON PERDIDO' consisting of two Spanish words, which may be translated into English as a 'hopeless poofter', would offend a significant portion of the Spanish general public as a homophobic slur, contrary to human dignity and accepted principles of morality. Consequently, the sign applied for various goods and services, including <i>audio-visual recordings</i> and <i>entertainment services</i> in Classes 9 and 41 and consisting of that expression must be refused pursuant to Article 7(1)(f) EUTMR as being contrary to accepted principles of morality (§ 72, 74). The GB considered that the evidence submitted fails to demonstrate that the expression 'MARICON PERDIDO' has been rehabilitated or reappropriated. Instead, it suggested that the said expression remains offensive to a significant part of Spanish consumers, including the gay	No	

community (§ 56-58, § 60-64, § 69-70). It pointed out that, in the assessment of the facts, it is irrelevant whether the applicant belongs to the group potentially offended by the registered term or whether it is committed to the fight against homophobia. The decisive factor is whether the term is offensive to persons of normal levels of tolerance and sensitivity who come into contact with the sign (§ 65).

The GB emphasised that Article 7(1)(f) EUTMR is a valid limitation of freedom of expression under with Article 11(2) of the Charter in conjunction with Article 52(1) of the Charter. The freedom of commercial expression must be balanced against the need to protect the public from offensive language, which would be perceived by the relevant public as contrary to the fundamental moral values and standards of society. The prohibition to register the trade mark is also proportionate, since it is necessary for the protection of the interests which it is intended to guarantee and is less restrictive than a prohibition of use (§ 86, 87).

	R 0497/2024	15/10/24	REASONED OPINION ON CONVERSION AND NON-FINAL REFUSAL DECISIONS	Conversion	EUTMR Article 71(3) Article 139 Article 165(4)	Register Operatio ns	The Grand Board issued its opinion on the first ever request of the Executive Director of the EUIPO pursuant to Article 157(4)(l) EUTMR. Questions were put forward by the Executive Director on a point of law regarding the possibility of conversion despite a not-yet-final decision refusing the mark. In responding, the GB considered that Article 66(1), Article 71(3) and Article 139(2)(b) EUTMR must be interpreted to mean that conversion cannot be excluded on the basis of a decision refusing the EUTM application in ex parte or inter partes proceedings where the application is subsequently withdrawn before the refusal could take effect (i.e. during the appeal period), even if no appeal is actually filed against that refusal. Where conversion is requested subsequent to a withdrawal of the EUTM application (Article 139(5) EUTMR), Article 139(2)(b) EUTMR does not apply. Thus, EU-27 conversion would remain possible in such circumstances, even though the EUIPO had previously determined in a decision that had not yet become final that an obstacle existed in all or part of the EU.	No
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R 0260/2021	16/05/24	COVIDIOT (fig.)	Contrary to public policy or principles of morality Descriptive Non-distinctive	EUTMR Article 7(1)(f) Article 7(1)(c) Article 7(1)(b) Article 165(3)(b)	Absolute grounds	Article 7(1)(f) EUTMR is not limited to trade marks whose use would be prohibited. Rather, the organs of public administration should not positively assist those who wish to further their business aims by using trade marks that are contrary to certain basic values of civilised society. It further clarified that whether ‘principles of morality’ are ‘accepted’ or not depends on the social consensus prevailing in that society. The GB must determine whether the relevant public would perceive the mark as contrary to the fundamental moral values and standards to which modern society adheres. Based on evidence of how the term ‘COVIDIOT’ was used, the GB concludes that its use in relation to games, toys or games software in Classes 6, 9 and 28, for example, would ridicule one of the deadliest and most destructive pandemics and trivialise the tragedy. This is hurtful and offensive to those who have suffered because of the pandemic and is contrary to human dignity. Consequently, it contravenes the accepted principles of morality. Addressing the applicant's argument that its right of freedom of expression required the mark to be registered, the GB recognises that trade mark applications are protected under freedom of expression. Hence, a refusal to register an application is an interference with that right. However, the right of freedom of expression is not unlimited. Interferences are possible, if justified. Following an in-depth review of the relevant case-law of the European Court of Human Rights, the GB concludes that the refusal would, in this case, constitute a justified limitation of the right of freedom of expression. Consequently, the GB considers that applicants’ freedom of commercial expression matters less in balance compared to the overriding and important principles that the refusal pursued. The GB concludes that the sign applied for is also refused pursuant to Article 7(1)(b) EUTMR due to its lack of distinctive character. The relevant	No
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consumers will merely recognise the word 'COVIDIOT' as a reference to the historical, social and political event and, in the case of educational games, to the subject of this game. Moreover, the figurative element will simply be perceived as a reference to the toy figurines of the game or to a hat worn by a cartoon character.								
	R 0400/2018 Remitted to the 2nd BoA	18/12/23	RECIOJITO / DI RECIOTO SOAVE et al.	Collective marks	EUTMR Article 8(1)(b) Article 8(4) Article 8(5) Article 165(3)(b)	Opposition	The conditions for referral to the Grand Board are not met. The case is remitted to the Second Board of Appeal.	No
	R 2672/2017 (RENV)	15/12/23	DEVICE OF A REPEATED GEOMETRIC DESIGN (fig.) 	Distinctive character Figurative mark Abstract shape	CTMR Article 7(1)(a),(b) Regulation 207/2009	CTM invalidity	The case concerned the assessment of the eligibility for registration of the figurative sign and, inter alia, whether evidence showing actual use of the sign in relation to the goods applied for could be taken into account. Following the judgements of the Court T-20/16 and T-124/20, the Grand Board held that the sign is purely figurative, and the description that the sign 'consist[s] of a repeated geometric design' refers to the repetition of the chevron, but not to the fact that the chevron could be repeated indefinitely. Hence, it does not contravene Article 4 Regulation 207/2009. However, the sign is devoid of distinctive character because it may be perceived first and foremost as an ornamental feature of the products and because a geometrically exact repetition of a simple geometric figure (the chevron) only leads to a pattern which is itself simple.	No
	R 1304/2020	28/09/23	EIN KREIS MIT	Non-use	EUTMR	EUTM	The conditions for referral to the Grand Board were no longer met and	

	Remitted to the 1 st BoA		ZWEI PFEILEN (fig.) 	Collective mark	Article 18(1) Article 58(1)(a) Article 74	invalidity	hence the case was referred back to the First Board of Appeal pursuant to Article 37(3) EUTMDR.	
R <u>1508/2019</u>	18/09/23	ZARA	Revocation	EUTMR	Conversion	In proceedings for the examination of a revocation action due to non-use, the applicable legal standard is Article 58(1)(a) EUTMR, namely, the single autonomous EU concept of genuine use. Whereas, on the other hand, in the proceedings for the examination of a conversion request, the applicable legal standard is the national legal framework on genuine use governed by the national laws of the Member State for which conversion is requested. Accordingly, given the different applicable law, a final decision issued in a revocation proceeding does not produce a res judicata effect in conversion proceedings.		
			Res judicata	Article 139(2)(a)				
			Conversion					

R 1083/2019	15/02/23	EL TOFIO El sabor de CANARIAS (fig.) 	Descriptive element Knowledge of languages	EUTMR Article 7(1)(b) Article 7(1)(c)	Absolute Grounds	This decision examines whether the regional-language name for an item formerly used in the production of goods, but now sold only as a souvenir or ornament, can be descriptive for those goods. The Grand Board held that a term in a locally-spoken language should be denied registration under Article 7(1)(c) EUTMR if it is the name of the goods, if it is used to describe features of the goods, or if it would be reasonable for such an association to be established in the future. Specifically, the Board decided on the registrability of the mark for 'goat cheese coming from the Canary Islands'. The Board found that the mark is dominated by the term "EL TOFIO", 'tofió' being the name in the Canary Islands' language for a formerly used vessel for milking goats. As there was no evidence that 'tofió' is a type of goat cheese, and it was not reasonable to assume that 'tofió' would become associated by the general public with goat cheese, the mark was not descriptive within the meaning of Article 7(1)(c) EUTMR.	No
R 1613/2019	15/12/22	Iceland (fig.) 	Descriptive Country names	EUTMR Article 7(1)(c) Article 59(1)(a) Article 165(3)(b)	EUTM invalidity	The mark contains the name of the country of Iceland. The application for a declaration of invalidity was examined by the Grand Board following oral proceedings. The mark will be perceived by the relevant public as an indication that the goods and services so designated originate from Iceland, or it is reasonable to assume that it will become so associated. Consequently, it was found descriptive of all of the goods and services for which it had been registered. The Grand Board confirmed the findings of the Cancellation Division that	Action filed before the GC (T-106/23)

the mark has been registered contrary to the provisions of Article 7(1)(c) EUTMR. The appeal was dismissed.								
	R 1238/2019	15/12/22	Iceland	Descriptive Country names	EUTMR Article 7(1)(c) Article 59(1)(a) Article 165(3)(b)	EUTM invalidity	The mark contains the name of the country of Iceland. The application for a declaration of invalidity was examined by the Grand Board following oral proceedings. The mark will be perceived by the relevant public as an indication that the goods and services so designated originate from Iceland, or it is reasonable to assume that it will become so associated. Consequently, it was found descriptive of all of the goods and services for which it had been registered. The Grand Board confirmed the findings of the Cancellation Division that the mark has been registered contrary to the provisions of Article 7(1)(c) EUTMR. The appeal was dismissed.	Action filed before the GC (T-105/ 23)
	R 0798/2021 Remitted to the 5 th BoA.	21/11/22		Revision	EUTMR Article 69 Article 165(3)(b)		The case concerns the validity of a second decision refusing a trade mark application when, following the filing of an appeal against the first decision, the examiner granted revision pursuant to Article 69 EUTMR. An examiner may lawfully, after granting revision, reopen the proceeding and adopt a new decision after having heard the applicant. The case is remitted to the 5th Board of Appeal.	No
	R 0887/2016 R 0334/2017 R 0343/2017 (Joined cases) Remitted to the 1 st BoA.	23/09/22	TESTAROSSA	Cancellation Proof of use Belated evidence	EUTMR Article 15 Article 165(3)(b)	IR extended to EU invalidity	The Grand Board noted that there had been further case-law on the questions involved, in particular the judgment of the Court of Justice delivered on 22 October 2020 in case C-720/18 – Ferrari. The conditions for the original referral were therefore no longer met and the case was referred back to the First Board of Appeal pursuant to Article 37(3) EUTMDR (previously Article 1(b)(4) of BoA-RP).	

R 0964/2020		13/04/22	Zoraya / Viña zoraya	Similarity of the goods and services	EUTMR Article 8(1)(b)	Opposition	On the basis of the arguments, facts and evidence presented before it, as well as generally known facts, the Grand Board decided that 'non-alcoholic beverages' and 'aromatized carbonated beverages' are at least slightly similar to 'wines, spirits and liqueurs' for the relevant public in Spain. For these goods, there is also a likelihood of confusion due to the high degree of similarity of the signs.	No
				Likelihood of confusion	Article 165(3)(b)		The remaining goods applied for, namely 'waters; mineral water [beverages] enriched with vitamins' are dissimilar with the goods covered by the earlier mark, there can therefore be no likelihood of confusion. In view of the above considerations, the GB partially upheld the opposition that was based on Article 8(1)(b) EUTMR.	
	R 0723/2021	06/04/22	IT'S LIKE MILK BUT MADE FOR HUMANS	Deceptive element	EUTMR Article 7(1)	Absolute Grounds	The Grand Board considered that the conditions for the original referral were not met and invited the President of the Boards to reallocate the case to a Board of Appeal pursuant to Article 35(4) EUTMDR.	
	Remitted to the 2 nd BoA.			Labelling Unfair competition	Article 165(3)(a)			
R 1853/2021		26/11/21	Limbic® Types	Res judicata Remittal from GC	EUTMR Article 7(1)(b), (c)	Absolute Grounds	The case concerns the registrability of the verbal sign Limbic® Types for goods and services in Classes 16, 35 and 41. The General Court had already decided that the EUTM application did not fall foul of Article 7(1)(c) EUTMR by final judgment. The GB considered that it was bound by the reasoning of this judgment as far as Article 7(1)(c) EUTMR was concerned (res judicata). The sign was not found to be devoid of any distinctiveness under Article 7(1)(b) EUTMR either. The GB annulled the decision of the examiner and allowed the mark to proceed to publication.	No
				Distinctive character	Article 165(3)(a)			
				Descriptive				
	R 1278/2017	26/11/21	Limbic® Map	Res judicata	EUTMR Article	Absolute Grounds	The case concerns the registrability of the verbal sign Limbic® Map for goods and services in Classes 16, 35 and 41. The General Court had already decided that the EUTM application did not fall foul of Article 7(1)(c)	No

				Distinctive character Descriptive element Perception of the sign by the relevant public	7(1)(b), (c) Article 165(3)(a)		EUTMR by final judgment. The Grand Board considered that it was bound by the reasoning of this judgment as far as Article 7(1)(c) EUTMR was concerned (res judicata). The sign was not found to be devoid of any distinctiveness under Article 7(1)(b) EUTMR either. The Grand Board therefore annulled the decision of the examiner and allowed the mark to proceed to publication.	
R 1277/2017	26/11/21	Limbic® Sales	Res judicata Distinctive character Descriptive element Perception of the sign by the relevant public	EUTMR Article 7 (1)(b) and (c) Article 165(3)(a)	Absolute Grounds	The case concerns the registrability of the verbal sign Limbic® Sales for goods and services in Classes 16, 35 and 41. The General Court had already decided that the EUTM application did not fall foul of Article 7(1)(c) EUTMR by final judgment. The Grand Board considered that it was bound by the reasoning of this judgment as far as Article 7(1)(c) EUTMR was concerned (res judicata). The sign was not found to be devoid of any distinctiveness under Article 7(1)(b) EUTMR either. The Grand Board therefore annulled the decision of the examiner and allowed the mark to proceed to publication.		No
R 1650/2018 Withdrawal	29/09/21	DARSTELLUNG EINER BAUMWOLLKAPS EL (fig.) 	Distinctive character Figurative mark Certification mark	EUTMR Article 7(1)(b) Article 165(3)(a)	Absolute Grounds	Following the withdrawal of the appeal, the Grand Board took note of the withdrawal and declared the appeal proceedings closed.		

R 2142/2018	28/06/21	DIESEL SPORT beat your limits (fig.) / Diesel et al.		Likelihood of confusion Proof of use	EUTMR Article 8(1)(b) EUTMDR Article 10(1) Article 10(5) Article 29	Opposition	The Opposition Division had refused the applicant's request for proof of use (filed within the time limit) on the grounds that it had not been submitted in a separate document. The Grand Board invited the Executive Director of the EUIPO to comment on the issue pursuant to Article 29 EUTMDR. The Executive Director clarified that the requirement of submitting a request for proof of use by way of a 'separate document' was not to be equated to submitting it by way of a separate electronic file attachment or a separate envelope. This requirement does not exclude the possibility of submitting the request via an annex of a submission. Furthermore, an EUTM applicant who files such request electronically is not obliged to use the specific e-action 'Request proof of use'. In the case at issue, the Grand Board considered that the request for proof of use had not been presented as a separate submission or as a separate annex of the same submission but was merged into the EUTM applicant's observations. The indications 'I. Request for proof of use' and 'II. Observations in reply to the opposition' constituted the titles of two sections of the same submission presented in continuum, with continuous pagination. Section I ended in the same page where Section II began. The presence of a signature covering the whole submission could not remedy non-compliance with the 'separate document' requirement. In view of the above, the request for proof of use had not been submitted in a 'separate document' within the meaning of Article 10(1) EUTMDR and the GB rejected it as inadmissible. On substance, the GB found that there was a likelihood of confusion. The appeal was dismissed.	No
R 368/2016	10/06/21	INMOBILIARIA PORTIXOL (fig.) INMOBILIARIA PORTIXOL		Bad faith Descriptive Geographi c term	EUTMR Article 7(1)(c)	EUTM invalidity	The Grand Board clarified the assessment of the descriptive character of geographical terms, in particular the name of a small geographical location, in light of the most recent case law of the General Court. The relevant public was found to consist of the average consumer of the services at issue (being real estate services) in the whole EU territory and could not	No

				Non-distinctive	Article 7(1)(b) Article 59(1)(a) Article 59(1)(b) Article 60(1)(c) Article 138		be limited to consumers visiting Palma de Mallorca or those interested in acquiring property in the town district of Portixol. The evidence submitted by the cancellation applicant was not sufficient to establish that the name PORTIXOL is known as the name of a geographical area by more than a negligible part of Spanish consumers, namely those originating from or living in Palma de Mallorca. Moreover, the cancellation applicant failed to demonstrate the existence of a link between the name PORTIXOL and the category of services at issue, namely that it would be perceived as designating their geographical origin. Nor was it proven that the contested EUTM as a whole and the relevant services in Class 36 would come to have such a relationship in the future. In conclusion, the contested EUTM was not found to fall foul of Article 59(1)(a) EUTMR in conjunction with Article 7(1)(c) EUTMR. As to the ground for invalidity based on bad faith, the GB found that the criteria for its application had not been met. There were no relevant and consistent indicia such that the EUTM proprietor would undermine the interests of the cancellation applicant in a manner that contravened honest practices in trade. The GB observed that the registration of the contested EUTM does not prevent the cancellation applicant from continuing the use of its sign in the territory at issue, in accordance with the applicable provisions. The appeal was dismissed.	
R 551/2018	26/03/21	Device (fig.) / Device (fig.) 	Identity of the goods and services Visual dissimilarity Conceptual	EUTMR Article 8(1)(b) Article 165(3)(a)	Opposition	The services at stake are identical. The Grand Board found that signs perceived as a letter of the alphabet are capable of conveying the generic concept of the corresponding letter. However, the mere fact that the same letter could serve to describe the signs under comparison is not in itself sufficient to establish the conceptual identity or even similarity of those signs. On the contrary, regard must be had to the full extent of the semantic content conveyed by each sign. In the case at hand, the signs are dissimilar overall. Even in the unlikely event that a part of the public were to perceive the signs as the stylised representation of the capital letter 'A', the signs	No	

		compariso n		would be visually and conceptually dissimilar and the aural comparison would remain neutral.		No likelihood of confusion may arise. Based on the foregoing, the Grand Board annulled the contested decision and rejected the opposition.	
R 379/2017	29/06/20	VICHY SPA (fig.) / SPA et al. 	Common element Conceptual dissimilarit y Likelihood of confusion Due cause Unfair advantage	EUTMR Article 8(1)(b) Article 8(5)	Oppositio n	Bearing in mind the context in which the contested trade mark is intended to be used (hotel and restaurant services), the consumer will attribute to the element 'SPA' the meaning of 'spa' (wellness centre). The presence of this word in the contested mark – moreover as a secondary element underneath the word 'VICHY' – will fulfil a merely informative purpose and will not generate any likelihood of confusion with the earlier marks 'SPA' and 'LES THERMES DE SPA', in which the same element fulfils different purposes (designating a brand of mineral water and a geographical location in Belgium, respectively). Use of the generic word 'SPA' in the contested mark is supported by due cause (informing the public of spa facilities in restaurants and hotels) and will not take any undue advantage of the reputation of the earlier marks. It follows that the opposition fails as regards the two earlier marks and the two relative grounds for refusal.	No
R 1499/2016	02/03/20	LA IRLANDESA 1943 (fig.) 	Bad faith Compleme ntary evidence Deceptive element	EUTMR Article 7(1)(g) Article 59(1)(a) Article 59(1)(b)	EUTM invalidity	The case concerns an application for a declaration of invalidity as regards the trade mark 'LA IRLANDESA' because of its deceptiveness and bad faith. Firstly, the Grand Board declared the EUTM invalid on the grounds of it being deceptive within the meaning of Article 7(1)(g) EUTMR. The dominant word elements 'LA IRLANDESA' establish a geographical link to Ireland. Used on the goods at issue in Class 29, 'LA IRLANDESA' will be understood by relevant Spanish-speaking consumers as an indication that these products are of Irish origin. It has however been proven by the invalidity applicants that the goods are not of Irish origin. The serious risk that consumers would believe that the goods bearing the mark were of Irish	T-306/20 Decisio n upheld

				Dominant element New submission on appeal	Article 71(1) EUTMDR Article 27(4)	origin, when in fact they were not, was already present at the time of filing the EUTM application. Secondly, the Grand Board declared the EUTM invalid on the grounds that it was filed in bad faith. The objective circumstances of the case lead to this conclusion, namely, the use, in a deceptive manner, of the contested mark by its proprietor, the many previous EUIPO and Spanish Court decisions establishing other 'LA IRLANDESA' marks as being deceptive, and the previous business relationship with one of the (Irish) invalidity applicants. These factors lead to the conclusion that it was the EUTM proprietor's intention to take advantage of the image of Irish products, even though its products were not of Irish origin.		
	R2445/2017	11/02/20	Sandra Pabst	Bad faith Legal certainty Proof of use	EUTMR Article 58(1)(a) Article 107	EUTM invalidity	The Grand Board confirmed the decision of the Cancellation Division, namely that the revocation request had been filed as an abuse of rights and process. These findings were reached taking into account the number of revocation requests (37) filed against the same company practically simultaneously, together with the attempt to acquire one of those trade marks (exerting disproportionate pressure on the EUTM proprietor which was done in a retaliatory manner), the nature of the company which filed the revocation request and the number of other cases launched by the same or economically linked companies, concerning their hundreds of revocation actions and thousands of trade mark filings and trade name registrations.	No
	R 2672/2017	13/12/19	DEVICE OF A REPEATED GEOMETRIC DESIGN (fig.) 	Distinctive character Figurative mark Abstract shape	CTMR Article 7(1)(a) and (b) Regulation 207/2009	CTM invalidity	Following the annulment of the decision in case R 1814/2014-1, the Grand Board had to re-examine the grounds for cancellation, but again reached the conclusion that the sign applied for is devoid of any distinctive character and has to be declared invalid under Article 59(1)(a) and Article 7(1)(b) CTMR. The sign shows a simple geometric pattern meant to be applied to the surface of the goods (knitting needles, which are long and thin).	T-124/20 Annulled

					The General Court had annulled the decision of the First Board of Appeal on the grounds that the version in which the sign is actually used by the CTM proprietor should not be taken into account but had not pronounced itself on the distinctiveness of the sign as graphically represented on the Register. The proprietor also claimed that Article 7(3) EUTMR was applicable. The Grand Board did not examine the claim of acquired distinctiveness but remitted the case back to the Cancellation Division solely for that matter.			
	R 1276/2017	02/12/19	Limbic® Types	Technical term Direct and immediate link Distinctive character Descriptive element Perception of the sign by the relevant public	EUTMR Article 7(1)(b), (c) Article 165(3)(a)	Absolute Grounds	Following the annulment of the decision in case R 1974/2014-1 by the General Court and the remittal of the case to the Boards of Appeal, the Grand Board rejected the appeal filed by the applicant. The Grand Board deemed itself competent to decide on Article 7(1)(c) and (b) EUTMR on the basis of new facts and evidence, with which the applicant had been confronted following the re-opening of the case. The relevant public also includes specialists outside the medical sector. From the perspective of English-speaking specialists, the sign merely describes the kind, contents and purpose of the goods and services in Classes 16, 35 and 41. Furthermore, the sign also lacks the minimum degree of distinctiveness for those goods and services. The Grand Board did not consider an oral hearing to be necessary since the applicant had been given various opportunities to defend its position.	T-96/20 Annulled
	R 912/2016	07/08/19	PANOTEC / PlanoTek et al.	Suspension of proceedings Withdrawal	EUTMR Article 8(1)(b) Article 165(3)(b)	Opposition	As a consequence of the withdrawal of the opposition, both the opposition and appeal proceedings lost their purpose and were closed by the Grand Board.	No

Delaying tactics Article 58(1)(a)								
R 958/2017	30/01/19	BREXIT (fig.) 	Public policy Principles of morality Distinctiveness	EUTMR Article 7(1)(b),(f) EUTMR Article 165(3)(b)	Absolute Grounds	The case concerns the eligibility for registration of the figurative sign 'BREXIT' for 'energy drinks containing caffeine; beer' in Class 32. The application was refused by the examiner on the basis of 7(1)(f) and (b) EUTMR. The GB pointed out that the relevant public includes all consumers in the EU as they frequently encounter the term through the mass media and the internet. As regards Article 7(1)(f) EUTMR, the GB found that 'Brexit' denotes a sovereign political decision, that was taken legally and has no negative moral connotations; it is neither an incitement to crime, nor an emblem for terrorism or a byword for sexism or racism. The word alone does not express an opinion. The fact that part of the UK public may have been upset by a controversial decision taken democratically does not constitute an offence. The GB concluded that the sign cannot be deemed to be contrary to the accepted principles of morality, in and of itself, nor when used as a brand for the goods applied for. Nevertheless, the term was, already at its filing date, so well-known to consumers as the name of an event of a historical and political nature that it would not be associated, prima facie, with specific goods originating from a specific trader. It may only acquire distinctiveness if consumers are sufficiently exposed to it in a trade context. Moreover, the colours and font are unable to divert the attention of the public away from the non-distinctive message conveyed by the word. The background evoking the Union jack accentuates this message. The GB refused the application pursuant to Article 7(1)(b) EUTMR and dismissed the appeal.		No

R 1801/2017	25/01/19	easyBANK (fig.) 	Descriptive -ness Figurative mark	EUTMR Article 7(1)(b), (c) Article 165(3)(b)	Absolute Grounds	The case concerns the registrability of the figurative sign 'easyBank' for goods and services in Classes 9, 36 and 42. As regards the applicability of 7(1)(c) EUTMR, the GB pointed out that the relevant public is the English-speaking public of the EU (as well as the public in Germany and Austria), comprising both professionals and the public at large. The word elements denote an institution offering a range of financial goods or services that are straightforward and simple to use. There is nothing unusual about the juxtaposed terms 'easy' and 'bank' and it is irrelevant whether or not they may be qualified as a neologism. The combination with the typeface and the orange background does not go beyond a merely descriptive sign. There is a clear and direct link to all of the goods and services (e.g. money dispensing machines in Class 9 render financial transactions easier, bank services can make the financing of real estate purchases in Class 36 easier). The assessment made confirms the Common Communication on Distinctiveness of figurative marks containing descriptive/non-distinctive words. The examination standards (including those of the General Court) develop over time and the case-law cited by the applicant (T-87/00 'Easybank' and T-346/07 'Easycover') reinforces the arguments in favour of refusing the contested application. As regards the applicability of 7(1)(b) EUTMR, the GB found that there was nothing in the sign as a whole that might, beyond the obvious laudatory meaning of 'easyBank', enable the relevant public to perceive it as denoting a trade origin. The appeal was dismissed and the application was refused for all goods and services.	No
R 1720/2017	21/01/19	ICEBERG (fig.) / ICEBERG et al. ICEBERG	Likelihood of confusion Comparison of goods	EUTMR Article 8(1)(b) Article 165(3)(b)	Opposition	The case concerns the examination of similarity between 'vodka' in Class 33 covered by the earlier trade marks and 'mineral water and aerated water; non-alcoholic beverages; fruit beverages and fruit juices' in Class 32 for which the contested mark seeks protection. Diverging decisions had been issued by the Boards of Appeal on this issue. The GB pointed out that the goods are directed at the public at large in Czech Republic and Germany, whose degree of attention will vary from average to low. The GB found 'vodka' and 'mineral water' to be dissimilar: they differ in nature (presence or absence of alcohol in the composition), they are not	No

							complementary and they are sold in different sections of supermarkets. 'Vodka' is also dissimilar to 'non-alcoholic beverages', as they are not produced using the same manufacturing process and they are not offered in the same parts of a store. The GB reached an outcome of dissimilarity also when comparing 'vodka' and 'fruit juices'. These goods are not manufactured in the same way, they do not contain the same ingredients and are not subject to the same regulations. As regards the possibility of mixing drinks, the GB reiterated that this is not an argument advocating in favour of similarity pursuant to the case-law (T-150/17, FLÜGEL); otherwise, a large number of goods described as "drinks" would fall into one and the same category for the purposes of Article 8(1)(b) EUTMR. The conflicting goods were considered dissimilar and the opposition was rejected in its entirety. The appeal was upheld.	
R 2595/2015	15/06/18	PELLICO (fig.) 	Proof of use Genuine use Creation of a Subcategory Partial revocation Purpose of the goods and services	EUTMR Article 58(1)(a) Article 58(2) Article 70(1) Article 165(3)(b)	IR extended to EU revocation	Within the framework of a revocation request for non-use, the Grand Board has found that 'footwear' in Class 25 is sufficiently broad for several subcategories to be identified within it and has considered whether 'women's footwear' constitutes an appropriate subcategory of 'footwear' in Class 25, in its literal meaning. In order to reach a conclusion, the GB has analysed the relevance of well-known facts, established criteria referred to by the General Court, market realities and the relevant consumer's behaviour. Taking into account the evidence provided (which shows ladies' slip-ons and high heels for casual or festive wear) the Grand Board concludes that the subcategory 'women's footwear' is not too narrow. This conclusion is supported by the consumer's specific purpose to acquire shoes that fit her needs in terms of shape and fashion; Market realities showing that shoes for 'women' correspond to a specific market sector; EUTM application filing practice showing that applicants frequently distinguish, in their wording of the goods, between types of footwear or		

							fact that he/she is accustomed to this standard shape. All of the mentioned differences are notable in the overall impression of the designs. In the Grand Board's opinion, the differences mentioned above will not escape the informed user's notice. They change the appearance of the products in a manner that will not go unnoticed by an observant user. The possibility that the two plates on top of each other cannot be separated from each other can also not be discarded, by which the differences between the two designs would be even more notable. Further, the differences between the contested RCD and the cup and saucer or the soup bowl included in the prior design are even more notable than with those of the top plate and the situation would be the same if the prior design would be considered to consist of one inseparable whole or unit. The contested decision annulled and the application for a declaration of invalidity rejected	
R 2450/2011	07/07/17	GOLDHASE (LINDT) (3D mark) 	Admissibility Distinctiveness acquired by use Evidence of use Function of trade mark Shape of the products	<u>EUTMR</u> Article 7(1)(b) Article 7(1)(e)(iii) Article 7(3)	Absolute grounds	The Grand Board's decision deals with re-filing of EUTM by the same party for the same sign in relation to the same goods which had already been rejected. On the basis of principles concerning 'confirmatory acts', the appeal submitted following the refusal of the application on the basis of Article 7(1)(b) EUTMR is not admissible. As to the applicant's claim that the EUTM applied for has acquired distinctive character in consequence of the use pursuant to Article 7(3) EUTMR, the Grand Board comes to the conclusion that the evidence submitted merely relates to 'Easter bunnies', i.e. a seasonal product which only represents an insignificant part of the European market in connection with the vast categories in respect of which the application was filed, and is therefore not sufficient to justify the application of Article 7(3) EUTMR for the broad generic term claimed, namely 'chocolate goods and chocolate'. In addition, the trade mark application falls squarely under Article 7(1)(e) (iii) EUTMR, which prohibits the registration of shapes which give	No	

			Substantial value		substantial value to the goods. In fact, the shape and features of a typical Easter bunny, which are the subject of the application at issue here, determine to a large extent the consumer's behavior when buying the product, meaning that the purchase of Easter bunnies is determined on the basis of their traditional shape and appearance.			
			3D mark					
	R 1893/2011	01/06/17	 / 	Competence of the Boards	Article 37(1) CTMR	Opposition Re-examination Absolute grounds Withdrawal	INTERIM DECISION: The Board suspends the present proceedings and refers the case to the examiner in order to examine whether the registration of the contested application is precluded by an absolute ground for refusal pursuant to Article 37(1) CTMR in respect of the services applied for in Classes 38, 39, 41, 42, 43 and 44. The G&S applied for in Classes 9, 16, 35 and 42, for which the refusal of the opposition has become final, are no longer the subject of the present proceedings. The Board refers the case to the examiner and suspends the present proceedings until a final decision on the registrability of the contested application has been taken. DECISION As a result of the re-examination on absolute grounds for refusal the contested application has been rejected for all the services under the appeal. Consequently, the opposition and appeal proceedings have lost their purpose and shall be closed accordingly.	C-170/19 P Appeal dismissed
	R 1894/2011	13/03/17	Cheapflights (fig.) / Cheapflights (fig.)  / 				INTERIM DECISION: The Board suspends the present proceedings and refers the case to the examiner in order to examine whether the registration of the contested application is precluded by an absolute ground for refusal pursuant to Article 37(1) CTMR in respect of the services applied for in Classes 38, 39, 41, 42, 43 and 44. The G&S applied for in Classes 9, 16, 35 and 42, for which the refusal of the opposition has become final, are no longer the subject of the present proceedings. The Board refers the case to the examiner and suspends the present proceedings until a final decision on the registrability of the contested	No

application has been taken. DECISION								
As a result of the re-examination on absolute grounds for refusal the contested application has been rejected for all the services under the appeal. Consequently, the opposition and appeal proceedings have lost their purpose and shall be closed accordingly.								
	R 1649/2011	16/11/15	SHAPE OF A BOTTLE (3D MARK) 	Admissibility Competence of the Boards Identity of the goods and services Identity of the signs Legal certainty Res judicata Three dimensional mark	CTMR Article 55(1) Article 55(2) Article 65(6) BoA-RoP Article 1(b)(1)	Absolute grounds	An applicant, who re-files an application for the same trade mark has the onus of establishing why a re-examination is justified by new factors and new circumstances. Where an applicant files an application for the same trade mark and the same goods or services, and the Office replies when examining the second application that invokes arguments already put forward by the applicant in the case of the earlier CTM, that circumstance does not in itself demonstrate that the second application has been the subject of a fresh examination by the Office. To hold otherwise would amount to accepting that an applicant might reopen the appeal and Court proceedings against a definitive decision of the Office. If the Grand Board were to hold that an appeal against a confirmatory act, taken by the Office was admissible, despite the fact that the appeal and the annulment action against the original act had been dismissed, this would make it possible to circumvent the irrevocable character of a Board decision confirmed by a definitive judgment of the General Court and the Court of Justice. An applicant would then be able to reactivate the possibility of bringing appeal and Court proceedings by provoking the adoption of a confirmatory act, thereby jeopardizing legal certainty.	No
	R 1207/2013	14/09/15	KOLIBRE / KOLIBRI	Withdrawal Costs	CTMIR Rule 18(2)	Opposition	The applicant sought to register the word mark for various goods and services in Classes 9, 41 and 42. The opponent filed a notice of opposition pursuant to Article 8(1)(b) CTMR, which was rejected by the OD. The	No

President of the Boards of Appeal referred the case to the Grand Board, which discussed the case at its meeting in November 2014. The Rapporteur of the case sent a communication to the President of OHIM requesting his legal opinion. After the President's reply was sent to the parties, the opponent withdrew its opposition. As a consequence of the withdrawal of the opposition, both the opposition and appeal proceedings had lost their purpose and were closed accordingly.							
R 863/2011	09/07/15	Malta Cross International Foundation (fig.) / Maltese cross (fig.)  / 	Complementary goods and services Complex mark Conceptual identity Dominant element Due cause Emblem Enhanced distinctiveness Evidence of use Filing date Identity of the goods and services Nature of the goods and services	CTMR Article 4 Article 8(1)(b) Article 8(5) Article 26(1)(c) Article 39 Article 43(2) Article 45 Article 76(1) Article 84(2) Article 85(1) Article 85(6) CTMIR Rule 2(2) Rule 9(3) Rule 9(4) Rule 13(4) Rule 94(7)(d)	Opposition	The case is important as regards the clarification of the ambit of protection under the relative grounds for refusal of a sign. The eight-pointed Maltese Cross is registered in Germany as a trade mark by an authorised association, an organization within the Order of Malta, which uses that sign in the furtherance of its welfare activities on the market and which usually is referred to as 'Malteserkreuz'. The applicant of the trade mark claimed that it belonged to the 'independent priories' of the Order of Malta and that the eight-pointed cross belonged to 'of all mankind' and had therefore a low distinctive character due to its use by other organisations. The case provides key pointers on the coexistence on the same market (Germany) by homonyms, i.e. organisations that use the identical sign and have the same historic origin as, in this case, the (catholic) 'Malteserorden' and the (protestant) 'Johanniterorden'. These are the only organisations in Germany using the Maltese cross with significant goodwill established from its use. In the context of such a coexistence, third parties may not invoke that a sign is weak. The case also clarifies the interpretation of broad specifications of services in specific classes applied for by the applicant that the Office may have accepted. Since the applicant had to apply for goods and services that were clear and precise and classified in the corresponding class, an ambiguous, vague and broad specification could not be interpreted in a way favourable to the applicant. With respect to unfair advantage taken of the reputation of the earlier trade	T-672/15 Decision upheld

				Relevant territory Reputation Substantiation of earlier right Unfair advantage Well known facts			mark, the high degree of similarity between the earlier trade mark and other official emblems used by the opponent to the mark applied for, the link between fundraising services and services that are usually financed through donations, and the procedural behaviour of the opponent (invoking a US judgment in its favour that had already been set aside on appeal at the moment of filing) plays a role.	
R 924/2013	22/06/15	SHAPE OF A LIGHTER WITH WORD DEVICE 'CLIPPER' (3D MARK)	Admissibility of remittal	CTMR Article 135(3)	EUTM invalidity	The case was originally remitted to the Grand Board in order to deal with the question whether a complex trade mark that shows the get-up of a product that is essentially composed of, on the one hand, a three-dimensional shape and, on the other hand, a word device element placed on the most visible part of the shape, may be registered as a 'three-dimensional trade mark'. During the proceedings before the GB, further relevant case law was issued (see, in particular, judgment of 07/05/2015, C-445/13 P, Bottle). Therefore, the case was remitted back to the First Board.	T-580/15 against R924/2013-1	
Remitted to the 1st BoA.								
R 295/2014	04/03/15	RECORDAL OF A DISCLAIMER	Admissibility Disclaimer	CMTR : Article 37(2), (3) Article 40 Article 43(1)	Refusal to record a disclaimer	The purpose of the appeal is to obtain the annulment of the decision of the Operations Support Department having refused to record a disclaimer to exclusive rights in respect of an element of a trade mark that had already been registered. The Grand Board observes that both the position (Title VI 'Registration Procedure') and the wording of Article 37(2) CTMR indicate that disclaimers may only be entered at an application stage. The expressions	No	

					Article 45 Article 48 Article 50(1) <u>CTMIR:</u> Rule 11(3) Rule 84(3)		used in Article 37(2) CTMR clearly circumscribe disclaimers to the pre-registration stage of CTM applications. Therefore, disclaimers may only be entered in the course of the examination proceedings, i.e. before the CTM is registered. Since the CTMR and the CTMIR do not expressly foresee the possibility of recording a disclaimer after the registration of a CTM, any request to make such a recordal is inadmissible.	
R 574/2013	10/10/14	SUEDTIROL	Admissibility Geographical origin Specialised public	<u>CTMR</u> Article 5 Article 7(1)(c) Article 7(2) Article 52(1)(a) Article 56(1)(a) Article 85(1) Article 85(2) Article 85(6) <u>CTMIR</u> Rule 94(1) Rule 94(7)(d)	EUTM invalidity	Article 7(1)(c) CTMR envisages cases where the geographic origin of the designated goods and services, or the place where these services are delivered, constitutes, for the relevant public, a 'characteristic' of the goods or services. This is not the case when the geographical indication is unknown to the relevant public. The relevant public generally perceives, or will, as a rule, at least perceive in the future, a geographical place known to it as the geographic origin of the goods and services concerned, or as the place where these services are delivered. This is, in particular, the case when major geographical and economically important places or regions – such as 'Südtirol' – are concerned. Therefore, it has to be examined in the present case whether the geographic term 'Südtirol' was, or could have been, perceived on the filing date of the contested Community trade mark (19 August 2002), by the relevant public, as a descriptive, informational indication of the geographical origin of the services concerned. This assessment is undertaken by reference to the relevant public's understanding of the term 'SUEDTIROL' and by reference to the services concerned.	T-11/15 Decision upheld	

The term 'Südtirol' is commonly used, in German, to designate Italy's northernmost province located at the southern side of the Brenner Pass, in the Alps, sharing a border with the Austrian Federal State ('Land') Tirol.

Therefore, to assess the perception of the contested Community trade mark, account has to be taken of the German-speaking population in the European Union, in particular in South Tyrol, in Austria, and in Germany.

South Tyrol is one of the richest regions in Italy and in the European Union. South Tyrol is well known in the European Union due, in particular, to its geographical location at one of the main transit routes of the Alps, its specific language regime and its economic importance (which includes a highly-developed tourism industry).

The contested Community trade mark is registered for a range of services in Classes 35, 39 and 42, i.e. services of business management, business administration and office functions (Class 35), packaging and storage of goods (Class 39), legal services, scientific, technological and industrial analysis and research services, as well as design and development of computer hardware and software computer (Class 42). These services do not bear any particular features, which would lead relevant consumers not to associate the geographical indication 'Südtirol' with the geographic origin of these services. This follows from the fact that services in the fields of business management, business administration, office functions, packaging and storage of goods, scientific and technological services and legal services are, in principle, offered in every region of a certain level of economic importance. When such services are offered under the sign 'SUEDTIROL', the relevant consumer will immediately believe that these services originate from South Tyrol or are delivered in South Tyrol, which he or she knows as an economically prosperous region where many companies are doing business.

Consequently, the CTM is declared invalid.

R 1006/2012	07/01/14	Pionono (fig.)   PIONONO	Burden of proof Complementary goods and services Dissimilarity of the goods and services Likelihood of confusion Nature of the goods and services Place of use Press articles Purpose of the goods and services Reputation Sales figures Scope of proceedings	CTMR Article 8(1)(b) Article 8(5) Article 76(1) Article 85	EUTM invalidity	There is no similarity between the 'transportation of goods' and 'goods' even where the 'goods' in question are identical for the reasons indicated in paragraphs 29 to 36. The nature, method of use, clientele, etc. are all different.	No
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R 1462/2012	18/09/13	ULTIMATE GREENS / ULTIMATE NUTRITION (fig.) et al. 	Conceptual dissimilarit y Figurative element Function of trade mark Identity of the goods and services Laudatory mark Nature of the goods and services Phonetic similarity Quality of the goods and services Relevant territory Similarity of the goods and services Slogan	CTMR Article 7(1)(b), (c), (d) Article 7(3) Article 8 Article 9 Article 12 Article 52(1)(a) Article 85(1) Article 85(6) CTMIR Rule 94(6) Rule 94(7)(d)	Oppositio n	The decision deals with the question whether the weak distinctive element of a complex mark can constitute a dominant element. The word 'ultimate' is a promotional word used to indicate superior quality of the latest goods available on the market. The average consumer in the entire European Union, who is reasonably well informed and reasonably observant and circumspect, will be aware of that meaning. The earlier CTMs 'ULTIMATE NUTRITION' consist of an adjective ('ultimate') followed by a noun ('nutrition') and they cover nutritional supplements and goods which nourish. specific element. Considering that all the word elements of the earlier trade marks 'ULTIMATE NUTRITION' are descriptive and non-distinctive, they cannot be the dominant elements of the signs. The figurative elements (a rectangle/a medal device) are neither catchy nor fanciful and have, consequently, no distinctive character. Overall, all the elements have the same value and, therefore, the signs for which the earlier trade marks enjoy protection are not dominated by any specific element. The earlier marks and the contested word mark 'ULTIMATE GREENS' are only similar to the extent that they coincide in a non-dominant, descriptive and non-distinctive element, i.e. the term 'ultimate', and are dissimilar with respect to all the other aspects. Even though the goods are partly identical and partly similar, the other factors, such as the non-distinctive character of the earlier trade marks and the low degree of visual similarities, are sufficient to exclude any likelihood of confusion, including the risk of association. A risk of association cannot be based on a non-distinctive element.	No	

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Whereas, a company is certainly free to choose a trade mark with a low or even non-distinctive character, including trade marks with descriptive and non-distinctive words, and use them on the market, it must accept, however, in so doing, that competitors are equally entitled to use trade marks with similar or identical descriptive components.

It would be against the rationale of the CTMR to give too much importance in the assessment of a likelihood of confusion to non-distinctive elements. It cannot be that a proprietor of a trade mark composed of figurative and/or word elements, where each of them taken alone or in combination are non-distinctive, were in the position to successfully claim a likelihood of confusion based on the presence of one of these elements in the other sign. This would result in an unduly broad protection for descriptive and non-distinctive elements, which would prohibit other competitors from using the same descriptive and non-distinctive elements as components of their trade marks, especially if the use of such a term were in accordance with honest practice in commercial matters.

	R 233/2012	18/07/13	PAPAGAYO ORGANIC	Acquiescence Coexistence of trade marks Evidence of use Function of trade mark Likelihood of confusion Phonetic similarity	CTMR Article 8(1)(b) Article 15(1)(a) Article 53(1)(a) Article 54(2) Article 57(2) Article 57(3) Article 85(2) CTMIR , Rule 22(3)	EUTM invalidity	According to the principle of partial use, genuine use of the earlier French trade mark has been established only for the sub-category 'rum', within the general category 'alcoholic drinks (except beers)'. The earlier mark's goods 'rum' and the contested 'spirits; rum; all of the aforesaid being organic' are identical. The earlier mark's goods 'rum' and the contested 'liqueurs; all of the aforesaid being organic' are highly similar. The earlier mark's goods 'rum' and the contested 'wines, all of the aforesaid being organic' are, at most, similar to a very low degree. Specific factors relevant for the comparison are: alcoholic strength; method of use; commercial origin; ingredients; whether the goods are interchangeable or in competition with each other; legislative regulations and distribution channels. The conflicting signs 'PAPAGAYO'/'PAPAGAYO ORGANIC' are highly similar on an aural and visual level.	No
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				Proof of use Quality of the goods and services Sales figures Similarity of the signs Used in the course of trade Visual similarity	Rule 40(5)		In the global assessment, there exists therefore a likelihood of confusion within the meaning of Article 8(1)(b) CTMR for the contested 'spirits and liqueurs; rum; all of the aforesaid being organic'. On the other hand, given the traditional differences in the production methods, and in the absence of any shown commercial or other collaborations between the respective producers of 'wine' and 'rum', the relevant public will not be led to believe that they are economically-linked and will have no sufficient reason to confuse the conflicting marks. The appeal is upheld in relation to 'wines, all of the aforesaid being organic' in Class 33 and dismissed in relation to 'spirits and liqueurs; rum; all of the aforesaid being organic' in Class 33.	
R 1798/2010	08/07/11	La qualité est la meilleure des recettes	Distinctive element Distinctiveness acquired by use Quality of the goods and services	CTMR Article 7(1)(b) Article 7(2)	Absolute grounds	The sign, taken as a whole, will be understood as denoting that the company who uses it strives for quality; that its objective is to provide quality. Furthermore, the message is expressed in plain, everyday language, without any flourish or resonance that could make it surprising or easy to remember. There is nothing fanciful or arbitrary about the words or the concept underlying them. When applied to the goods for which protection is sought in Classes 29, 30 and 32, namely, foodstuffs and beverages, relevant consumers will perceive the sign as a plain statement emphasizing that they are confronted with products which are produced by using methods that guarantee a high quality. The sign as a whole will be perceived as nothing more than a promotional promise or a marketing incitement to acquire the applicant's goods. Consequently, the sign applied for is not capable of being perceived as an indication of commercial origin. The documents submitted do not permit the Board to draw the conclusion	T-570/11 Decision upheld	

					that the mark at issue has had an impact on the marketplaces of Belgium, France and Luxemburg to the extent that a significant part of consumers would identify the trade mark applied for as an indication of origin. Thus, the applicant has not proved acquired distinctiveness of the word combination applied for and, consequently, the request for registration in accordance with Article 7(3) CTMR must be rejected as well.			
	R 172/2008	14/10/09	VISTA / Vistar	Principle of legality Reimbursement Revocation of decision Substantial procedural violation Substantiation of earlier right Translation of evidence	CTMR Article 76(2) Article 82(2) CTMIR , Rule 19 Rule 20(1) Rule 53	Opposition	Article 82(2) CTMR relating to a continuation of proceedings clearly states that 'this Article shall not be applicable to the time limits laid down in ... Article 42'. It follows that a continuation of proceedings is not applicable either to Rule 19 CTMIR, although it is not specifically excluded by Article 82(2) CTMR, since it is a Rule implementing Article 42(1). The decision of the OD of 12 September 2007 granting the continuation of proceedings was obviously erroneous since Article 82 CTMR was not applicable to the time-limit set for the opponent to substantiate the opposition. On the revocation of the decision granting the continuation of proceedings: the decision, granting the continuation of proceedings, contained an obvious procedural error attributable to the Office, and therefore a correction letter in the sense of Rule 53 CTMIR is not applicable. The decision of granting a continuation of proceedings was a procedural measure which affected the opponent's rights and therefore should be regarded as a decision. The fact that it could only be appealed together with the final decision does not change this finding. The initial decision of 12 September 2007 granting the continuation of proceedings which was favourable to the opponent was an unlawful act which could have adversely affected the legitimate interests of the applicant in these <i>inter partes</i> proceedings. The opponent did not substantiate its earlier rights as the translations, into the language of the proceedings, of the registration certificates were	No

						belated. In the present case, Rule 20(1) CTMIR precludes the taking into account of the translation submitted to the Office by the opponent, in the version applicable to the facts of the case. It is apparent from that provision, in combination with Rule 19(3) and (4) and Rule 98(2) CTMIR, that the submission of the translation of the earlier mark's registration certificate after the expiry of the period specified for that purpose results, in principle, in the rejection of the opposition without the Office having any discretion in that regard. The substantiation of the earlier mark is a preliminary matter which must accordingly be settled before a decision is taken on the merits of the opposition. It follows that the Office, and in particular, the Board does not have the discretion in the present case as regards the taking into account of the translation submitted belatedly by the opponent. Since the fee for a continuation of proceedings was paid unnecessarily, the OD should take the necessary measures in order for the fee for a continuation of proceedings to be refunded, pursuant to Article 82(5) CTMR. The appeal is dismissed.	
R 323/2008	28/04/09	BEHAVIOURAL INDEXING	Competence of the Boards Descriptive element Legal certainty Revocation of decision	CTMR Article 7(1)(c) Article 61(2) Article 80 CTMIR Rule 11(3)	Absolute grounds	On the revocation: After a notice of appeal has been filed, jurisdiction over the case lies solely with the Boards of Appeal and the department that issued the contested decision no longer retains competence to decide on the case. From that point on, only the Boards may decide on the case and, after examination, may possibly remit it to the appropriate department for further prosecution. The examiner who issued the contested decision may only rectify it after an appeal has been lodged, under the narrow conditions of Article 61 CTMR. It follows that the examiner is bound by the revision procedure laid	T-310/09 Decision upheld

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down in Article 61 CTMR and may not, at his or her discretion, choose to apply revocation provisions such as those of Article 80 CTMR, which are applicable outside the framework of appeal proceedings.

In the present case, the examiner did not rectify his decision within the one-month period provided for in Article 61(2) CTMR. But approximately four months after the receipt by the Boards of the statement of grounds, the examiner revoked the contested decision and issued a new decision on the merits, confirming the previous one. The examiner's revocation decision was thus issued contrary to Article 61 CTMR. Consequently, the examiner's second decision is null and void. Therefore, it cannot produce legal effects. In addition, it must be noted that the substantive conditions for revoking a decision were not met in the present case because the first examiner's decision did not contain an 'obvious procedural error'.

On the substance:

The expression plainly informs the relevant public that the G&S in Classes 9 and 36 concern the compilation of an index that takes into account human, social and cognitive factors (for example, overconfidence, over optimism, mimicry, risk aversion, emotional attachment to assets), that affect key issues in the financial management of entities and investment decisions concerning matters, such as, prices, returns and allocation of resources. Therefore, the mark applied for constitutes an immediate, direct and easily understandable indication of the nature and intended purpose of the G&S in question.

R 1313/2006	15/07/08	cardiva (fig.) / cardima (fig.) 	Likelihood of confusion Phonetic similarity Scope of proceedings Similarity of	CTMR Article 8(1)(b) Article 8(2)(a)(i), (ii), (iii) Article 8(2)(b) Article 32	Opposition	The opposition against the figurative mark applied for 'cardiva' for Classes 10, 35 and 39 was based on the earlier CTM application 'CARDIMA' for G&S in Classes 9, 10 and 42. The opposition proceedings were suspended because the earlier CTM application 'CARDIMA' was itself the subject of an opposition proceeding. As a result of it, the CTM application 'CARDIMA' was restricted and registered for a limited list of services in Class 42, namely 'scientific, medical and surgical research and consultancy services'. The opponent informed the Office that for the refused goods in Classes 9 and 10 a conversion had been requested in several Member	No
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				the goods and services Specialised public Visual similarity	Article 41(1)(a) Article 112(1) Article 112(2)(b) Article 112(4) Article 112(5) Article 112(6) Article 113 <u>BoA-RoP</u> Article 8(3)	States. The OD considered that the opposition could not be considered as based on the pending national applications since the original earlier right on which the opposition was based had ceased to exist partially and the subsequent national applications (for Classes 9 and 10) were autonomous and independent and were never the basis of the opposition. It was decided to take into consideration as a basis for the opposition only the registered CTM 'CARDIMA' registered for services in Class 42. The OD upheld the opposition for the contested goods in Class 10 namely 'surgical, medical, dental and veterinary apparatus and instruments, artificial limbs, eyes and teeth, orthopaedic articles; suture materials' and rejected the opposition for the remainder. The CTM application 'CARDIVA' was allowed to proceed for the services in Classes 35 and 39. The applicant filed an appeal against the decision. As the case poses a question of major legal importance, i.e., whether an opposition, which was originally based on a CTM application that was later converted into national trade mark applications and registrations for some of the G&S, can be maintained as based on the national rights issuing from the said conversion, the case was remitted to the Grand Board of Appeal. The Grand Board decided that the answer to this procedural question, which is not given clearly in the text of either the CTMR or the CTMIR, should be positive. The conversion of a CTM application into national trade mark applications is the direct consequence of a decision of the Office and is further directly conditioned by the substance of that decision or a further decision. Its timing is also the consequence of an Office decision. Therefore, it cannot be considered that such national trade mark applications are independent from the CTM application. They may give birth to national applications and registrations which will be considered autonomously by national offices but the link with the CTM or CTM application remains. National trade mark registrations resulting from a conversion of a CTM application can constitute the basis of the opposition procedure originally made on the basis of that CTM application.	
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							The goods in Class 10 covered by the CTM applied for are identical or highly similar to the goods covered by the national earlier rights. The figurative elements of both signs are weak as they are mostly composed of common geometric forms. The consumer's attention will therefore be drawn to the word components as such, that are the dominant element of the composed trade marks. Since the only differences between the word elements are their sixth letters 'M' against 'V' as well as the slightly different typefaces, therefore, the signs are visually similar overall. The slightly different sound at the end of the word is, however, insufficient to avoid the very similar overall phonetic impression of the marks. From a conceptual point of view, the word elements will not have a meaning in the languages in question. A likelihood of confusion exists and the opposition is upheld and the CTM application rejected for all goods in Class 10.	
R 1341/2007	18/04/08	KOSMO/ COSMONE	Admissibility Statement of grounds	Article 60 CTMR	Opposition	The four-month time-limit to file a statement of grounds in accordance with Article 59 CTMR cannot be suspended, not even in the case of a common request from both parties. Consequently, the appeal must be declared inadmissible.	No	
R 667/2005	07/06/07	Cardiology Update (fig.) Cardiology Update	Declaration Distinctive- ness acquired by use Language of the proceedings Nature of the goods and services	CTMR Article 7(1)(c) Article 7(3) Article 60(3) Article 100(1)	Absolute grounds	The one-month deadline for supplying a translation according to Rule 96(1) CTMR is applicable to the notice of appeal. If the notice of appeal (or the statement of grounds of appeal) is not in the language of proceedings, the appellant has one month from the submission of the original document to supply a translation. The complete combined expression 'Cardiology Update' means that an update takes place in the cardiology sector. In connection with the services which are still claimed, namely 'arranging medical congresses and seminars', the expression therefore describes the fact that it involves events which convey up-to-date information in the cardiology sector and which 'update participants as to the latest developments in this sector'. The expression therefore designates the subject-matter of the services which are still claimed.	No	

				Purpose of the goods and services Relevant territory Translation of evidence Use in third country		The applicant claimed the distinctiveness of its sign acquired through use. The means of evidence filed comprised a list of 650 participants who were present at the last conferences (2001) arranged by it; declarations signed by distinguished specialists indicating that this week-long conference had been organised every two years since 1975 and that it was the only one known by them to be called 'Cardiology Update'. The cardiologists also underlined the international reputation of the conference and the programme for 'Cardiology Update' 2005. The Board considers that the applicant has not demonstrated that the use inside the Community has occurred in such a way so as to allow for the registration of the CTM. The only fact that has been proven is that professionals from the Community have taken part in conferences which take place in Switzerland (outside the territory of the Community). The Board does not exclude the fact that an event taking place outside the Community could, over time, acquire reputation such as to establish itself also within the Community as a sign belonging to a particular supplier on the market, provided that the sign is used as a trade mark inside the Community itself in the same fashion; but this last point has not been proven. Next, the figure of 650 attendees was given, but although the list of speakers was provided, a list of the attendees' names and functions was not. It cannot be inferred from the geographic spread of the speakers that the attendees came mainly from the Community and if so, from which countries. In their written statements, 11 university professors associate the term 'Cardiology Update' exclusively with the conferences arranged by the applicant. The perception of 11 individuals is not enough and does not allow for a conclusion to be reached as to how the target public, or at least a substantial part of that public, will perceive the sign applied for. The Board considers that the Office cannot base the decision on mere assumptions or probabilities, neither can the Office infer from the participation of Community citizens in events organised outside the Community, that use in the Community had taken place. It is for the applicant to bring forward the elements that prove that effective use has	
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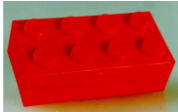
							occurred and that such use was of such a duration, intensity, nature and geographical scope that the absolute grounds of Article 7(1)(b) and (c) CTMR are overcome. The appeal is dismissed.	
R 331/2006	27/09/06	Optima	Reimbursement Suspensive effect	CTMR Article 43(1) Article 58(1) Article 131 CTMIR Rule 51 Rule 52(2)	Absolute grounds withdrawal	The first-instance examiner refused the trade mark applied for, the word 'Optima' for registration in Classes 9 and 16 on the basis of Article 7(1)(b) and (c) CTMR. The applicant did not appeal against this decision, but instead withdrew the application within the two-month appeal period after the letter of rejection had been received. The applicant asked for clarification after noticing that on OAMI-ONLINE its application appeared as having been rejected and not withdrawn. The Office's Trade Mark Department informed the applicant by letter that since the application had been rejected in its entirety, there was nothing left to be withdrawn. The applicant filed an appeal against this letter. The Grand Board considers that the letter concerned was a notification of a 'decision subject to appeal'. The letter informed the applicant for the first time that its request for the withdrawal of its mark applied for was refused. The letter itself thus resulted in the notification of a decision that terminated proceedings in this respect, even if it did not contain any communication indicating that an appeal could be filed. As far as the subject of the appeal is concerned, the Grand Board comments that use of the term 'at any time' in Article 44(1) CTMR, clarifies the fact that a withdrawal is permissible during any phase of the proceedings, that is to say, not only during the examination proceedings, but also, in particular, during ongoing opposition and appeal proceedings. It adds that the appeal proceedings have a suspensive effect, and that a contested first-instance Office decision cannot take legal effect until the period to lodge an appeal is over or the decision handed down by the Board of Appeal has confirmed the first-instance decision. Thus, the decision to refuse the registration of the mark applied for cannot have the consequence of terminating the examination proceedings until the two-month period in which to appeal is over. In the present case, the period for	No	

filing a notice of appeal against the decision of the examiner rejecting the application had not yet expired when the applicant's withdrawal was received by the Office. Thus it was still possible for the applicant to withdraw its application.

The Grand Board stresses that the present appeal is against the decision of the examiner not to accept the withdrawal and not against the decision to reject the mark applied for. It adds that the decision to reject the mark applied for has not been challenged; therefore, it has to be considered that as from the expiry of the two-month appeal period, it was a decision that would remain in the files.

The Grand Board does not find that the Trade Mark Department committed a substantial procedural violation as it merely followed the applicable guidelines. The appeal fee was not reimbursed. The Grand Board annuls the appealed decision.

It notes that the application has been withdrawn and instructs the Trade Mark and Register Department to correct this in the records.

	R 856/2004	10/07/06	(3D) Shape of lego brick 	Functional element Patent Three-dimensional mark	CTMR Article 7(1)(e)(ii) Article 52(1)(a)	Absolute grounds	The bricks' dominant feature - the two rows of studs on the upper surface – endow a simple toy brick with the necessary robust interlocking mechanism which such blocks need to have if they are to be manipulated by a child. The Lego bricks features were adopted to perform a utilitarian function. Their eye appeal stems from the aesthetics of a sound structural and functional form. The decision follows the principle laid out in the 'Remington/Philips' judgment (paragraph 83) which found that a shape must be precluded from registration as a trade mark if its essential functional characteristics are attributable solely to the technical result even if that result could be achieved by other shapes. The GB finds that the Lego brick is not registrable by virtue of	T-270/06 Decision upheld
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							Article 7(1)(e)(ii) CTMR for 'construction toys' covered by Class 28. Therefore, the appeal is rejected as unfounded, the contested decision is upheld, and the invalidity of the Lego brick registration confirmed with respect to 'construction toys' covered by Class 28 of the registration.	
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